Khalifa University of Science & Technology
Libraries
PO Box 127788
Abu Dhabi
United Arab Emirates

1st August 2018

Letter of Agreement – English Language Print Books, DVD's and CD's

Dear Patricia, Muna

ProQuest is pleased to offer Khalifa University the following terms for English Language print books. These terms will be effective from 1 August 2018 until 31 December 2019 (The Agreement Period).

This document sets out the terms of agreement between ProQuest and Khalifa University in good faith and is not intended to be legally binding by either party.

Pricing Structure

ProQuest is offering Khalifa University the following discounting structure for print books in English language:

- 14% discount will be offered for published material for which ProQuest obtains a discount greater than 31%.
- 0% discount will be offered for published material for which ProQuest obtains a discount ranging between 19.00%-31.00%.
- An uplift of up to 37% shall be applied to the ProQuest cost price for published material for which ProQuest obtains a discount of 0%-18.99%.

The above discount structure is based on the following requirements:

- Expected annual print budget spend of 300,000 AED
- Orders to be placed by Khalifa University without the need for ProQuest to verify pricing. i.e. Quotes are not required before an order is placed.

- Customer discounts are applied to the Recommended Retail Price (RRP) invoiced to ProQuest by the publisher. The publisher can change their RRP's without notice so these may differ from the prices ordered by the customer occasionally. RRP's are set by the publishers and not by ProQuest as a distributor, therefore, we cannot guarantee that the RRP of an item will not change during the term of the agreement.

If PQ are informed of a change of RRP we shall supply the order if the new RRP is no more than 50 USD. If the RRP is over 50 USD we will refer to Khalifa University for confirmation to proceed if the increase is more than 15% over your original ordered price.

- For titles available through our out-of-print service (iFound), the price displayed on OASIS is the price Khalifa University will pay for the book. There is no additional discount for these items.

- ProQuest will actively source titles ordered by Khalifa University up to 180 calendar days from the original sales order. Any outstanding orders after this period, not sold on a firm sale basis, or confirmed en-route will be automatically cancelled and the customer advised.

Freight and Shipping Terms

Books will be delivered to Khalifa University, Sas Al Nakhl Campus, Habshan, UAE on a door to airport basis (Abu Dhabi airport) as per Khalifa University's instructions

- Freight charges are included in the discount structure if the shipment weight is more than 50kg. If less than 50kg ProQuest will ship using the Khalifa University FEDEX account as previously agreed.
- Cartons shall not weigh more than 15kg and are labelled with the shipping address. Invoices are included inside each carton. Packing slips shall be included in each carton.

For the purposes of this agreement, 'freight charges' shall mean the total costs that the shipping contractor(s) charge to ProQuest to deliver to Abu Dhabi airport.

Duty and tax charges are the responsibility of Khalifa University

Shipping

- Frequency – once a month if the shipment is over 50kg, or as required by Khalifa University if being sent by FEDEX on the Khalifa University account.

Metadata Service and Physical Processing for Print Materials:

Rates for cataloguing and processing are subject to an annual review. Revised rates will only be applied after official acceptance by Khalifa University.

ProQuest will supply:

MARC records for items with an ISBN based on level 4 (core level) (please see Appendix 1) or full level MARC21 records with Library of Congress subject headings for titles written in English.

Shelf MARCS will be applied per ISBN ordered.

Charges are as follows:

Cataloguing Original	$4.03 per record
Cataloguing CIP Upgrade	$4.03 per record
Cataloguing Derived	$4.03 per record
Cataloguing Shelf MARC	$0.76
For DVD MARC	$6.75 per record
For CD MARC	$16.07 per record

Processing charges:

Base Service Charge includes:

- Insert barcode (supplied by customer) $0.12
- Supply and fit barcode protector $0.17

Total $0.29

Supply and fit spine label	$0.23
Supply & fit spine label protector	$0.17
Laminate Covering for paperback	$0.90
Super sleeve for hardback with dust jacket	$0.95

Other charges for reference:

Apply spine label protector	$0.13
Standard MARC records for Ebook Central	$0.00
MARC records for other Aggregator or Primary Publisher platforms	$1.25

Standards: Customer Services Department

The Customer Services department is committed to providing the highest quality and most cost-effective service to all customers. Our objective is to meet and exceed the standards that have been established over many years and to drive continuous improvement to these standards throughout the life of the agreement.

ProQuest commits to the following:

- Email inquiries will be acknowledged immediately
- Customer inquiries will have a <24-hour response.
    - Any issue requiring more time to completely resolve shall have weekly updates on status until the original request is completed
- Urgent inquiries are to be responded to within 4 hours of receipt
- Customer Claims to be processed within 7 days
- Customer Cancellations will be processed within 24 hours of receipt
- Customer return requests must be received within 30 working days of invoice date.
    - Only books damaged, serviced incorrectly or supplied incorrectly will be considered for return.

Status reports shall be provided weekly by the transmission method determined by the customer. These will be emailed to acquisitions@ku.ac.ae

Operational Standards

All available orders will be placed with publishers/distributors within 1 working day. Any remaining orders will be sourced and placed with the appropriate supplier by the Data Services team within 24 hours.

Payment Terms

During the term of this agreement, ProQuest shall invoice Khalifa University for payment due under the terms of the pricing structure. Khalifa University agrees to pay ProQuest invoices for books supplied and services rendered in full within 60 days after the date indicated on the invoice.

In the event of the invoice containing disputed item(s) (i.e. wrong title supplied, book arrived damaged, misprint etc). Khalifa University shall notify ProQuest within 30 days after receipt of the invoice. If credit is agreed for one of these reasons and the books need to be returned, ProQuest will cover cost of return. At all times undisputed items will be paid within 60 days after the date indicated on the invoice.

All prices quoted and invoices generated will be in USD. All pricing reflects the use of EDI protocol to exchange order and invoicing information. 'Brief records' are free of charge.

Effective Dates

This Letter of Agreement will be effective from 1 August 2018 and will be extended through 31 December 2019. Each party will have the right to cancel outright or notify the other party of any changes they require making to the new Agreement no later than 30 November 2019. The parties will agree to any changes before the start of a new term and a new agreement will be signed by both parties.

Right to Audit

During the term of this agreement, ProQuest will provide Khalifa University the right to conduct an official audit of all Khalifa University purchases made during the term of this agreement. Khalifa University representatives may request and be provided with all available invoices from publishers and freight forwarders used by ProQuest to fulfill the requirements of this agreement.

The audit may be conducted using copies of requested materials sent by ProQuest to Khalifa University and any additional material as requested during the process. In addition, if Khalifa University prefers, and provided that ProQuest are given advance notice, the audit may be conducted at the ProQuest offices in Ringwood, UK.

ProQuest Contact List

Iain Green will serve as the Senior Sales Representative for Khalifa University. Customer service for the Library will be provided by a dedicated Customer Service team member who will handle all day-to-day queries, such as claims, credits, consignment tracking. Should there be a need for specialist expertise, i.e. from the approvals or technical services team, the inquiry will be forwarded accordingly and everyone kept informed. Customer Service hours of operation are Monday through Friday, 09:00 A.M. – 5:30 P.M. GMT.

- Iain Green, Sales Representative .....+971 50 565 7287
- Sara Fitch, Customer Service Representative ..... +44 1425 485849
- Fiona Rundle, Customer Services Manager.....+44 1425 485830
- Refer to Appendix 2 for Khalifa contacts

Quarterly Business Review

ProQuest agrees to continue providing Khalifa University with regular status reports and reviews, if required. The analysis would contain pertinent, detailed information on the business conducted between ProQuest and Khalifa University during the previous year.

Annual Business Review

ProQuest understands that Khalifa University must produce annual budget forecasts. To support the creation of these budget forecasts, ProQuest agrees to provide detailed information on the business conducted between ProQuest and Khalifa University during the previous calendar year, fiscal year, or period of time as requested by Khalifa University. Khalifa University agrees to provide ProQuest with reasonable advance notice to allow for sufficient time for this information to be created.

Confidentiality

This document sets out the terms of agreement between ProQuest and Khalifa University in good faith and is not intended to be legally binding by either party.

Neither party shall disclose any contractual or operational details of the joint relationship of the business to any third party; and shall treat the information with at least the same degree of care as it would to preserve its own confidential information.

Governing Law

The agreement and all of the rights and obligations for the parties hereto and all of the terms and conditions hereof shall be construed, interpreted, applies in accordance with, governed by and enforced under the laws of the United Arab Emirates or any Emirate thereof.

ProQuest looks forward to a continued successful partnership with Khalifa University. If you have any questions, please do not hesitate to contact Iain Green +971 50 5657287 who will be pleased to assist you.

To accept and activate this Letter of Agreement, please sign below and return this Agreement by email to iain.green@proquest.com

On behalf of Khalifa University of Science & Technology, I understand and agree to the above terms.

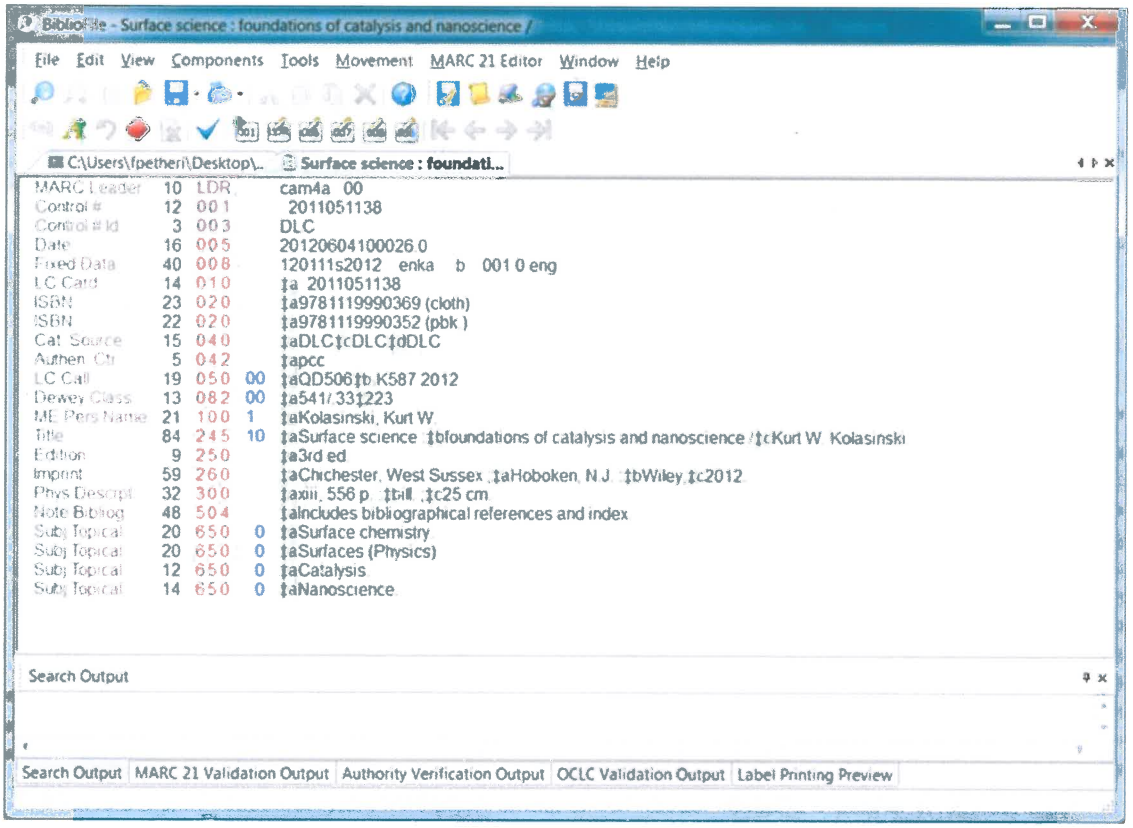
Signature: _____ Date: 18 SEP 2018

Print Name: Mosallam Al Kathiri

Title: VP - HR & Procurement

Appendix 1

Screenshot of a level 4 example record:



BiblioFile - Surface science : foundations of catalysis and nanoscience /

File Edit View Components Tools Movement MARC 21 Editor Window Help

C:\Users\fpetheri\Desktop\... | Surface science : foundati...

MARC Leader	10	LDR		cam4a 00
Control #	12	001		2011051138
Control # Id	3	003		DLC
Date	16	005		20120604100026.0
Fixed Data	40	008		120111s2012 enka b 001 0 eng
LC Card	14	010		‡a 2011051138
ISBN	23	020		‡a9781119990369 (cloth)
ISBN	22	020		‡a9781119990352 (pbk.)
Cat. Source	15	040		‡aDLC‡cDLC‡dDLC
Authen. Ctl	5	042		‡apcc
LC Call	19	050	00	‡aQD506‡b.K587 2012
Dewey Class	13	082	00	‡a541/.33‡223
ME Pers Name	21	100	1	‡aKolasinski, Kurt W.
Title	84	245	10	‡aSurface science :‡bfoundations of catalysis and nanoscience /‡cKurt W. Kolasinski
Edition	9	250		‡a3rd ed.
Imprint	59	260		‡aChichester, West Sussex ;‡aHoboken, N.J. :‡bWiley,‡c2012.
Phys Descript	32	300		‡axiii, 556 p. :‡billl. ;‡c25 cm.
Note Bibliog	48	504		‡aIncludes bibliographical references and index.
Subj Topical	20	650	0	‡aSurface chemistry.
Subj Topical	20	650	0	‡aSurfaces (Physics)
Subj Topical	12	650	0	‡aCatalysis.
Subj Topical	14	650	0	‡aNanoscience.

Search Output

Search Output | MARC 21 Validation Output | Authority Verification Output | OCLC Validation Output | Label Printing Preview

Appendix 2

Contact persons at Khalifa University of Science & Technology

Main Contact:

Muna Abdulla muna.abdulla@ku.ac.ae
Patricia Jamal Patricia.jamal@ku.ac.ae

Technical Specification:

Huda AlAlawi huda.alalawi@ku.ac.ae
Shamsa Al Hosani shamsa.alhosani@ku.ac.ae

ILS System Support (KOHA):

Nikesh Narayanan nikesh.narayanan@ku.ac.ae